

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3563

By: Eaves

AS INTRODUCED

An Act relating to commercial motor vehicles; prohibiting the operation of commercial motor vehicles by unauthorized migrants; requiring law enforcement officers to take unauthorized migrants operating commercial motor vehicles into custody and facilitate the transfer to a federal immigration agency; implementing punitive fees and required costs; prohibiting certain persons from operating business in the state; providing for codification; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 6-126.3 of Title 47, unless there is created a duplication in numbering, reads as follows:

A. A law enforcement officer who determines that a person operating a commercial motor vehicle in this state is an unauthorized migrant shall take the unauthorized migrant into custody and facilitate the transfer of the unauthorized migrant into

1 the custody of a federal immigration agency consistent with federal
2 law.

3 B. A commercial motor vehicle operated by an unauthorized
4 migrant who is taken into custody pursuant to this section shall be
5 impounded. The owner of the compounded vehicle shall pay a Fifty
6 Thousand Dollar (\$50,000.00) fine to the Department of Public Safety
7 and all costs and fees for the impoundment, including the cost of
8 notification, before the impounded vehicle may be released to such
9 owner.

10 C. A motor carrier that owns, leases, or otherwise operates a
11 commercial motor vehicle operated by a person who is taken into
12 custody pursuant to this section shall be prohibited from operating
13 in this state.

14 SECTION 2. This act shall become effective July 1, 2026.

15 SECTION 3. It being immediately necessary for the preservation
16 of the public peace, health or safety, an emergency is hereby
17 declared to exist, by reason whereof this act shall take effect and
18 be in full force from and after its passage and approval.

19
20 60-2-13964 TKR 12/31/25
21
22
23
24